

As alleged, Patterson's actions show intent to cause injury with a willful and conscious disregard for the safety of Plaintiffs. The allegations are similar to those seen in *Thomas v. Doorley* (1959) 175 Cal.App.2d 545, where the court upheld a jury award of punitive damages in favor of the plaintiff who stated he was the victim of an "unprovoked, unwarranted and malicious assault." (*Thomas, supra*, 175 Cal.App.2d at 548.) Despite conflicting testimony regarding self-defense, the court held that, "It is beyond controversy that the defendants were guilty of oppression and malice and that the court was justified in awarding punitive damages as provided by section 3294 of the Civil Code." (*Id.* at 494.)

Even when a complaint does not have a specific request for punitive damages, it has been found that allegations that a defendant assaulted and beat a plaintiff, and the defendant struck the plaintiff in and about the face fracturing plaintiff's jaw and causing injury to the plaintiff's left eye, and numerous contusions and abrasions about the plaintiff's face and head, inferentially pleaded malice so as to warrant an instruction on exemplary damage. (See generally, *Voy v. Shelley* (1960) 177 Cal.App.2d 132.)

Here, the complaint sufficiently describes Patterson's assault and battery on Andrew such that a request for punitive damages survives the pleadings challenge. (Complaint, ¶ 1, p. 2:13-20.)

Motion to Strike Plaintiffs' Claim for Punitive Damages DENIED.

Case Management Conference confirmed for 7.31.26

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO VACATE; TO DISQUALIFY; VOID; AND FOR TERMINATING SANCTIONS by JENNIE LYNN GONZALEZ

Tentative Ruling: No tentative ruling. Case was transferred to Los Angeles County Superior Court for all purposes.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2602951	NGHIEM VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL ARBITRATION BY GENESIS MOTOR AMERICA, LLC

Tentative Ruling: CCP §1281.2, governing orders to arbitrate controversies, provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner;